

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Whitney Beber	Team: Squad #02	CCRB Case #: 201700776	☐ Force	☒ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Wednesday, 01/25/2017 10:10 AM	Location of Incident: Hamilton Avenue and Brooklyn Queens Expressway	18 Mo. SOL 7/25/2018	Precinct: 76		
Date/Time CV Reported Wed, 01/25/2017 10:12 AM	CV Reported At: IAB	How CV Reported: Phone	Date/Time Received at CCRB Tue, 01/31/2017 10:46 AM		

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. POM Damien Clarke	08803	933698	076 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POF Krysta Cosenza	09372	961710	076 PCT

Officer(s)	Allegation	Investigator Recommendation
A . POM Damien Clarke	Abuse: Police Officer Damien Clarke stopped the vehicle in which § 87(2)(b) was an occupant.	A . Exonerated
B . POM Damien Clarke	Discourtesy: Police officer Damien Clarke acted discourteously toward § 87(2)(b)	B . Unsubstantiated

Case Summary

On January 25, 2017, § 87(2)(b) filed the following complaint with the Internal Affairs Bureau under original log number 2017-3054. On January 31, 2017, the Civilian Complaint Review Board (CCRB) received the complaint. § 87(2)(g)

§ 87(2)(b)

§ 87(2)(b)

On January 25, 2017, at approximately 10:10 a.m., § 87(2)(b) left the Green-Wood Cemetery in Brooklyn and drove in the direction of the Brooklyn Queens Expressway (BQE). When he reached the sign for the BQE on Hamilton Avenue, he observed Police Officer Damien Clarke of from the 76th Precinct. § 87(2)(b) stopped to ask for directions. Police Officer Clarke approached § 87(2)(b)'s vehicle and § 87(2)(b) asked for directions, which Police Officer Clarke provided. As § 87(2)(b) proceeded to drive away, Police Officer Clarke stopped § 87(2)(b) § 87(2)(b) asked him for his license, and instructed him to pull over (**Allegation A**).

As § 87(2)(b) was waiting, Police Officer Clarke stopped two more cars. § 87(2)(b) exited his car and walked towards Police Officer Clarke. Police Officer Clarke allegedly put his hand on his holstered gun, and ran towards § 87(2)(b) and told him to get back into his car. § 87(2)(b) § 87(2)(b) put his hands up and returned to his car. Police Officer Clarke handed § 87(2)(b) a summons for “disobeying traffic” (Board Review 05) and allegedly “threw” his license and the summons through the window of § 87(2)(b)'s car, landing on the dashboard of the car (**Allegation B**).

No video footage was found for this incident.

Mediation, Civil and Criminal Histories

- § 87(2)(b) accepted mediation and on March 1, 2017, the case was forwarded to the Mediation Unit. On March 28, 2017, the case was returned to the Investigations Unit after Police Officer Clarke rejected mediation.
- As of May 17, 2017, no Notice of Claim has been filed with the New York City Comptroller's Office in regards to this incident.
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Civilian and Officer CCRB Histories

- This is the first CCRB complaint filed by or involving § 87(2)(b) (Board Review 01).
 - Police Officer Clarke has been a member of the NYPD for thirteen years and has had seven prior CCRB allegations within four complaints, none of which were substantiated or recommended for other misconduct (see officer history). § 87(2)(g)
- § 87(2)(b)

Findings and Recommendations

Allegation not pleaded

- § 87(2)(g)
- § 87(2)(g)
- § 87(2)(g)

§ 87(2)(g)

Allegation A- Abuse of Authority: Police Officer Damien Clarke stopped the vehicle in which § 87(2)(b) was an occupant.

On February 24, 2017, § 87(2)(b) provided a telephone statement to the CCRB (Board Review 02). On April 7, 2017, § 87(2)(b) was interviewed at the CCRB. On April 20, 2017, Police Officer Krysta Consenza of the 76th Precinct was interviewed at the CCRB. On May 2, 2017, Police Officer Clarke was interviewed at the CCRB.

It is undisputed that § 87(2)(b) was driving on Hamilton Avenue when he approached the BQE ramp, and was stopped by Police Officer Clarke.

As per § 87(2)(b) after leaving Green-Wood Cemetery in Brooklyn, he drove towards the BQE ramp. § 87(2)(b) was unfamiliar with the area, so when he came to two lanes, one that went straight and one that turned right, he drove in between these two lanes and stopped to ask Police Officer Clarke for directions. § 87(2)(b) waved Police Officer Clarke over, who then approached. § 87(2)(b) asked for directions to Queens and Police Officer Clarke pointed towards the right and “waved” § 87(2)(b) in. As § 87(2)(b) was preparing to drive off, Police Officer Clarke stopped § 87(2)(b) and asked for his license. § 87(2)(b) asked Police Officer Clarke why he needed his license. Police Officer Clarke told § 87(2)(b) to pull over behind a marked police vehicle. § 87(2)(b) complied. As he was sitting in his car, § 87(2)(b) thought he observed Police Officer Clarke pull over more cars and pull out his summons book.

Police Officer Clarke stated that he parked his marked police vehicle a distance of three or four cones into the BQE ramp. Police Officer Clarke stood at the rear of his vehicle observing the traffic entering the ramp. There were three lanes, separated by solid white lines. The right lane was the only lane that was allowed to enter the BQE ramp, as indicated by a rectangular sign hanging above the right lane on an overpass, with a right black arrow, with the words only and a pavement marking with a right white arrow, with the words only. Also separating the middle lane from the right lane was a triangle with “zebra stripes,” which indicated an area which drivers were prohibited to drive in. Police Clarke was positioned in such a way that he would be able to observe any cars that disobeyed the traffic signs or the pavement markings. Police Officer Clarke observed § 87(2)(b)'s vehicle drive from the middle lane and over the zebra stripes, where he waited to be let into the right lane. This was the only infraction he observed § 87(2)(b)'s vehicle make.

Police Officer Consenza described that for her assignment, both she and Police Officer Clarke were on foot, and from that vantage point they observed whether any drivers violated the pavement markings. Police Officer Consenza did not specifically remember this incident despite having a note at 10:10 on January 25, 2017, in her memo book (Board Review 05) for a summons that was issued.

Article 24, Section 1110A of the Vehicle and Traffic Law states that “Every person shall obey the instructions of any official traffic control device applicable to him placed in accordance with the provisions of this chapter, unless otherwise directed by traffic or police officer, subject to exceptions granted the driver or an authorized emergency vehicle in this title” (Board Review 03).

§ 87(2)(g) [REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]

§ 87(2)(g) [REDACTED]
[REDACTED]
[REDACTED]
[REDACTED] it is recommended that **Allegation A** be **Exonerated**.

Allegation B -Discourtesy: Police Officer Damien Clarke acted discourteously towards

§ 87(2)(b) [REDACTED]

It is undisputed that Police Officer Clarke did not “hand” § 87(2)(b) [REDACTED] summons and license to him and that it was placed on the dashboard of his car. § 87(2)(g) [REDACTED]
[REDACTED]

In his telephone statement, § 87(2)(b) [REDACTED] stated that he called 911 and then told Police Officer Clarke that he was reporting him. Police Officer Clarke told § 87(2)(b) [REDACTED] “Good, you’re the third person today.” Police Officer Clarke issued § 87(2)(b) [REDACTED] a summons and handed it to him, after which, he “tossed” § 87(2)(b) [REDACTED] s license onto his dashboard.

In his sworn statement, § 87(2)(b) [REDACTED] stated that Police Officer Clarke threw both the license and the summons into § 87(2)(b) [REDACTED] s car with the flick of his wrist and did not attempt to hand § 87(2)(b) [REDACTED] his license or the summons.

As per Police Officer Clarke, he wrote the summons by § 87(2)(b) [REDACTED] s vehicle. When he approached § 87(2)(b) [REDACTED] s vehicle to give him the summons, he observed § 87(2)(b) [REDACTED] on the phone with 911. Police Officer Clarke told § 87(2)(b) [REDACTED] that he could make a complaint and might have also told § 87(2)(b) [REDACTED] that he was the second or third person making a complaint about him that day. Police Officer Clarke did not stop any other cars around the time he stopped § 87(2)(b) [REDACTED]. When Police Officer Clarke tried to instruct § 87(2)(b) [REDACTED] on how to handle the summons, § 87(2)(b) [REDACTED] would not let him talk uninterrupted. When Police Officer Clarke tried to hand § 87(2)(b) [REDACTED] the summons, he attempted to “snatch” the summons. Rather than let § 87(2)(b) [REDACTED]

§ 87(2)(b) “snatch” the summons, Police Officer Clarke placed it on his dashboard. At no point did Police Officer Clarke throw § 87(2)(b)’s license or the summons on the dashboard. Police Officer Clarke described § 87(2)(b) as being aggressive and hostile because he seemed “very angry,” because every time Police Officer Clarke tried to explain why he pulled him over, he would “cut [him] off,” and his tone was loud. Police Officer Clarke described his own demeanor as having “matched” that of § 87(2)(b).

At no point did Police Officer Cosenza see Police Officer Clarke throw a summons or an individual’s license into that individual’s car. She however, did not recall this incident specifically.

Summons number § 87(2)(b) was issued to § 87(2)(b) for disobeying a traffic device by Police Officer Clarke at 10:10 a.m. on January 25, 2017 (Board Review 04). On the back of the summons Police Officer Clarke wrote that this was the second car stopped at this time and that § 87(2)(b) was “aggressive” and “hostile.” In the notes section on the back of the summons, Police Officer Clarke drew a diagram of the “zebra stripes,” and noted that § 87(2)(b) “snatched” the summons so he placed the ID on his dashboard.

In his memo book, Police Officer Clarke put a special notation indicating that the person to whom he issued summons number § 87(2)(b) was “aggressive” and “hostile” (Board Review 05).

§ 87(2)(g)

_____. It is therefore recommended that **Allegation B** be **unsubstantiated**.

Squad:

Investigator: _____
Signature Print Date

Squad Leader: _____
Title/Signature Print Date

Reviewer: _____
Title/Signature Print Date